



01 / OPENING THE LEGAL SUITE

COOKE BYTE

Terms + License

Legal suite for digital services

COMBINED DOCUMENT / FOR REVIEW

One consolidated record for CookeByte’s service terms, end-user licensing framework, and client approval.

TERMS

LICENSE

AGREEMENT

Contents — *Legal suite*

Two documents. One CookeByte sequence. Contract agreement at the final page.

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FINAL PAGE / CLIENT AGREEMENT

C The terms and license sections are followed by one contract agreement form for the client and CookeByte to complete and sign.

c 1. Introduction

These Terms & Conditions ("Terms") govern the provision of digital services by COOKEBYTE ("COOKEBYTE", "we", "us", or "our") to the client ("Client", "you", or "your").

COOKEBYTE operates as an independent freelance digital agency providing design, development, and related digital services.

By approving a project quotation or proposal, or by making the required advance payment, the Client confirms that they have read, understood, and agreed to these Terms.

c 2. Services

COOKEBYTE may provide services including, but not limited to:

- Website design and development
- E-commerce website development
- UI/UX design
- Landing pages
- Web applications
- Branding and visual design
- Interactive digital experiences
- Website deployment
- Technical support
- Other digital services agreed between COOKEBYTE and the Client

The exact services and deliverables for each project will be determined by the applicable quotation, proposal, or project description.

c 3. Project Scope

COOKEBYTE will perform the work based on the requirements agreed upon with the Client.

Only work reasonably falling within the agreed project scope will be considered part of the original project.

Requests that introduce additional features, functionality, pages, integrations, designs, or other requirements may be treated as additional work.

Additional work may be added to the final project bill.

c 4. Pricing & Payment

Unless otherwise agreed by COOKEBYTE:

20% of the agreed project amount is payable as an advance before work begins.

The remaining 80% is payable before final delivery.

COOKEBYTE may begin project work after receiving the required advance payment.

The final project files, source code where applicable, deployment, credentials, or other final deliverables will only be provided after the outstanding balance has been paid in full.

All prices and project-specific charges will be communicated through the applicable quotation or proposal.

c 5. Additional Work

Any work requested by the Client outside the originally agreed scope may be treated as additional work. Additional work may include:

- New features
- Additional pages
- Additional integrations
- Major design changes
- Additional functionality
- New platforms
- Additional development requirements
- Other requests that materially increase the original scope

Additional work will be added to the final bill.

COOKEBYTE may determine whether a request constitutes additional work based on the original project requirements.

c 6. Client Responsibilities

The Client agrees to provide all information, content, materials, access, credentials, approvals, and other resources reasonably required for the completion of the project.

The Client may be required to provide:

- Logos
- Images
- Videos
- Written content
- Product information
- Business information
- Hosting or domain access
- API keys
- Third-party account access
- Other project-specific information

The Client is responsible for ensuring that all materials supplied to COOKEBYTE are accurate and that the Client has the legal right to use such materials.

COOKEBYTE will not be responsible for issues arising from inaccurate, incomplete, unauthorized, or unlawful materials supplied by the Client.

c 7. Client Delays

The project timeline may depend on timely communication, approvals, materials, and access from the Client.

If the Client causes a delay by failing to provide required information, feedback, approvals, credentials, or materials, the project deadline will be extended accordingly.
COOKEBYTE will not be required to maintain the original delivery date when delays are caused by the Client.

c 8. Project Cancellation

If the Client cancels the project after COOKEBYTE has commenced work:

- The 20% advance payment will be non-refundable.
- The Client will remain responsible for payment for additional work already completed beyond the advance.
- Any third-party expenses incurred for the project will remain payable by the Client.

Cancellation will not remove the Client's obligation to pay for work already performed.

c 9. Late or Outstanding Payments

If the Client fails to make a required payment when due, COOKEBYTE may pause the project until the outstanding amount is received.

COOKEBYTE will not be required to provide final files, source code, deployment, credentials, or other final deliverables until the outstanding balance has been paid in full.

c 10. Design & Project Approval

The Client will have reasonable opportunities to review the work during the project.

Once the Client approves a design, feature, layout, or project direction, COOKEBYTE may proceed based on that approval.

Changes requested after approval may be considered additional work where they fall outside the originally agreed scope.

c 11. Project Acceptance

A project will be considered accepted when:

- The Client provides approval of the completed project; or
- The completed project is publicly launched with the Client's approval.

Once accepted, subsequent requests or modifications may be treated as new or additional work.

c 12. Bug Fixes & Post-Delivery Changes

COOKEBYTE does not provide automatic free post-delivery maintenance or bug-fixing services unless specifically agreed otherwise.

Any fixes, modifications, updates, improvements, or changes requested after delivery may be chargeable.
This includes issues arising from:

- Client modifications
- Changes made by another developer
- Third-party integrations
- Hosting changes

- Platform changes
 - Software updates
 - New requirements
 - Changes to previously approved functionality
-

c 13. Maintenance & Support

Ongoing maintenance is not included by default.
After project completion, additional services such as:

- Content updates
- Feature changes
- Technical support
- Security updates
- Performance improvements
- Design modifications
- Development work

may be provided separately and charged according to the applicable quotation.

c 14. Third-Party Services & Costs

Third-party services required for a project may include:

- Domains
- Hosting
- APIs
- Payment gateways
- Plugins
- Premium fonts
- Stock assets
- Software subscriptions
- Cloud services
- Other external services

All third-party costs will be paid separately by the Client unless otherwise agreed in writing.
COOKEBYTE is not responsible for changes in third-party pricing, availability, policies, limitations, outages, or discontinuation.

c 15. Hosting & Deployment

Hosting and deployment arrangements may vary depending on the project.

Where applicable, the Client will be responsible for the relevant hosting, domain, subscription, and renewal costs. COOKEBYTE may assist with setup or deployment where such services are included in the agreed project scope.

c 16. Intellectual Property & Ownership

Ownership of project-specific deliverables will be determined on a project-by-project basis and may be specified in the applicable quotation, proposal, or project agreement.

Unless expressly transferred or assigned, COOKEBYTE retains ownership of its pre-existing and reusable intellectual property, including:

- Frameworks
- Libraries
- Reusable code
- Templates
- Design systems
- Components
- Internal tools
- Development methods
- General technical knowledge

Third-party materials remain subject to their respective licenses and terms.

c 17. Source Code & Project Files

Source code and editable project files will be provided only where such materials form part of the agreed deliverables.

Unless otherwise agreed, COOKEBYTE is not required to provide internal development tools, private frameworks, reusable libraries, working files, internal documentation, or other proprietary materials. Final delivery remains subject to full payment.

c 18. Portfolio Rights

Once a project has been publicly launched, COOKEBYTE may showcase the completed work in its:

- Portfolio
- Website
- Presentations
- Social media
- Marketing materials
- Case studies

COOKEBYTE will not knowingly disclose confidential or unreleased information through such promotional use.

c 19. Confidentiality

Both COOKEBYTE and the Client agree to maintain the confidentiality of information reasonably understood to be confidential and received in connection with the project. Confidential information will not knowingly be disclosed to unauthorized parties except where disclosure is required by law or necessary for legitimate project purposes. This obligation does not apply to information that is already publicly available or becomes publicly available through no breach of these Terms.

c 20. Client & Third-Party Modifications

After delivery, COOKEBYTE is not responsible for issues caused by modifications made by the Client, another developer, hosting provider, third-party service, plugin, API, or other external party. Any resulting repairs or restoration work may be treated as additional paid services.

c 21. Termination by COOKEBYTE

COOKEBYTE may pause or terminate a project where the Client:

- Fails to make required payments
- Repeatedly fails to provide required information
- Repeatedly fails to respond or provide necessary approvals
- Materially breaches these Terms
- Prevents COOKEBYTE from reasonably performing the agreed services

Where a project is terminated, the Client remains responsible for applicable amounts relating to work already completed and third-party expenses incurred.

c 22. Confidential Materials & Client Data

COOKEBYTE will take reasonable care when handling information, credentials, files, and materials provided by the Client for project purposes. The Client remains responsible for maintaining ownership and legal rights over its own business information and materials.

c 23. Limitation of Responsibility

COOKEBYTE will make reasonable efforts to perform the agreed services professionally and in accordance with the approved project requirements. COOKEBYTE will not be responsible for failures, interruptions, losses, or issues caused primarily by third-party services, infrastructure, hosting providers, platforms, APIs, software providers, or modifications made by parties other than COOKEBYTE. Nothing in these Terms is intended to exclude any liability that cannot legally be excluded under applicable law.

c 24. Force Majeure

COOKEBYTE will not be responsible for delays caused by circumstances reasonably beyond its control, including major technical failures, natural disasters, infrastructure outages, governmental actions, widespread internet disruptions, or other unforeseen circumstances. Where such circumstances occur, the project timeline may be adjusted accordingly.

c 25. Dispute Resolution

In the event of a dispute, both parties will first attempt to resolve the matter through direct communication and good-faith discussion.

If the dispute cannot be resolved through discussion, the parties may pursue appropriate remedies under applicable Indian law.

c 26. Governing Law

These Terms are intended to operate under the applicable laws of India.

Any legal matters arising from the engagement will be handled in accordance with applicable Indian law.

c 27. Agreement Acceptance

The Client's:

- Approval of the project quotation or proposal; or

- Payment of the required 20% advance

will constitute confirmation that the Client has read, understood, and agreed to these Terms.

No physical signature is required unless otherwise agreed between the parties.

c 28. Entire Agreement

These Terms, together with the applicable project quotation, proposal, invoice, and agreed project requirements, constitute the understanding between COOKEBYTE and the Client regarding the services.

Where there is any inconsistency, these Terms will take priority unless COOKEBYTE expressly agrees otherwise in writing.

COOKEBYTE

Founders: Abisheik & Benitto Email: cookebyte@gmail.com Country: India

Effective Date: _____

Craft.Cook.Serve !

01

Definitions

“COOKEBYTE”, “we”, “us”, or “our” means the independent freelance digital agency operating under the CookeByte name. “Client”, “you”, or “your” means the person or organization approving the project. “Deliverables” means the project-specific digital materials identified in the applicable quotation, proposal, invoice, or project agreement.

“Source Materials” means pre-existing code, frameworks, libraries, templates, design systems, tools, methods, and other reusable materials owned or controlled by CookeByte.

“Project” means the agreed digital service engagement described in the project documents. “End User” means a person who accesses or uses a delivered website, application, interface, campaign, or other digital experience.

02

License Grant

Subject to the Client’s payment of all amounts due and continued compliance with this Agreement, COOKEBYTE grants the Client a limited, non-exclusive, non-transferable, non-sublicensable license to use the project-specific Deliverables identified in the applicable project documents for the Client’s own business, commercial, internal, or customer-facing purposes.

The license begins only when the relevant Deliverables have been accepted or released for use and the applicable project amount has been paid in full. The license does not transfer ownership of CookeByte’s Source Materials or any third-party materials.

03

Deliverables & Scope

COOKEBYTE will provide the Deliverables reasonably described in the approved quotation, proposal, invoice, or project description. The project scope may include design, development, deployment, branding, content systems, interactive experiences, technical support, or other services expressly agreed between the parties.

Requests for additional pages, features, functionality, integrations, platforms, major design changes, content production, or other work outside the agreed scope may require a revised quotation and may be added to the final project bill.

04

Permitted Use

The Client may use the licensed Deliverables for the business and purposes described in the project agreement.

The Client may publish, display, distribute, and make ordinary operational copies of the project-specific Deliverables as reasonably required for that use.

Where the Deliverables include a website or web application, the Client may permit its employees, contractors, customers, and End Users to access and use the live implementation in accordance with the Client’s own policies and applicable law.

05

Restrictions

Unless COOKEBYTE expressly agrees otherwise in writing, the Client must not:

- resell, rent, lease, sublicense, or distribute the licensed Deliverables as a standalone product;
- remove ownership notices or falsely represent CookeByte’s Source Materials as the Client’s own;
- reverse engineer, decompile, or extract proprietary Source Materials except to the extent permitted by applicable law;
- use the Deliverables to violate law, infringe third-party rights, or distribute unlawful, harmful, or misleading content;
- permit a third party to reuse the Deliverables outside the Client’s agreed business use without written permission.

06

Ownership & Reserved Rights

Ownership of project-specific Deliverables will be determined by the applicable project documents. Unless expressly transferred or assigned in writing, COOKEBYTE retains ownership of its Source Materials, including frameworks, libraries, reusable code, templates, components, design systems, internal tools, development methods, and general technical knowledge.

Nothing in this Agreement prevents COOKEBYTE from using general skills, ideas, know-how, techniques, or reusable non-confidential components developed during the Project.

07

Third-Party Materials

A Project may depend on domains, hosting, APIs, payment gateways, plugins, premium fonts, stock assets, software subscriptions, cloud services, open-source components, or other third-party materials. Third-party materials remain subject to their own licenses and terms.

The Client is responsible for third-party charges unless otherwise agreed in writing. COOKEBYTE is not responsible for third-party pricing, availability, policies, limits, outages, changes, or discontinuation.

08

Client Materials

The Client grants COOKEBYTE permission to use the logos, images, videos, written content, product information, business information, credentials, API keys, account access, and other materials supplied for the Project. The Client represents that it has the legal right to provide and use those materials.

The Client remains responsible for the accuracy, lawfulness, permissions, and ownership of Client Materials. COOKEBYTE is not responsible for issues caused by inaccurate, incomplete, unauthorized, or unlawful Client Materials.

09

Fees & Payment

Unless the project agreement states otherwise, 20% of the agreed Project amount is payable before work begins and the remaining 80% is payable before final delivery. COOKEBYTE may pause work if a required payment is late or outstanding.

Final files, source code where applicable, deployment, credentials, editable project files, and other final

Deliverables will be provided only after the outstanding balance and approved additional work have been paid in full.

10

Review, Acceptance & Changes

The Client will have reasonable opportunities to review the work during the Project. A Deliverable is accepted when the Client approves it, approves its public launch, or uses it publicly with approval. After acceptance, requested modifications may be treated as new or additional work.

Changes that materially alter an approved design, feature, layout, functionality, or direction may require a revised quote. Client-caused delays in providing feedback, approvals, access, credentials, or materials extend the delivery timeline accordingly.

11

Support & Maintenance

Ongoing maintenance, content updates, technical support, security updates, performance improvements, design modifications, and development work are not included by default unless specifically stated in the project

agreement. Post-delivery fixes, changes, updates, and improvements may be chargeable.

COOKEBYTE is not responsible for issues caused by Client modifications, another developer, hosting changes, third-party services, plugins, APIs, platform changes, software updates, or new requirements.

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Confidentiality & Data

Each party will take reasonable care to protect information reasonably understood to be confidential and received in connection with the Project. Confidential information will not knowingly be disclosed to unauthorized parties except where required by law or necessary for legitimate Project purposes. COOKEBYTE will take reasonable care when handling Client information, credentials, files, and materials supplied for Project purposes. The Client remains responsible for maintaining ownership and legal rights over its business information and materials.

13 Warranties & Liability

COOKEBYTE will make reasonable efforts to perform the agreed services professionally and in accordance with the approved Project requirements. Except as expressly stated in writing, the Deliverables are provided without additional warranties to the maximum extent permitted by applicable law.

COOKEBYTE will not be responsible for failures, interruptions, losses, or issues caused primarily by third-party services, infrastructure, hosting providers, platforms, APIs, software providers, Client Materials, or modifications made by parties other than COOKEBYTE. Nothing in this Agreement excludes liability that cannot legally be excluded.

14 Term & Termination

This Agreement begins when the Client approves the Project or pays the required advance and continues until the applicable license or Project relationship ends. COOKEBYTE may pause or terminate the Project if the Client fails to pay, repeatedly fails to provide required information or approvals, materially breaches this Agreement, or prevents reasonable performance.

If the Client cancels after work begins, the advance is non-refundable and the Client remains responsible for completed additional work and third-party costs. Termination does not remove payment obligations already incurred.

15 Governing Law & General Terms

The parties will first attempt to resolve disputes through direct communication and good-faith discussion. This Agreement is intended to operate under the applicable laws of India, and legal matters arising from the engagement will be handled in accordance with applicable Indian law.

This Agreement, together with the applicable quotation, proposal, invoice, and approved Project requirements, constitutes the understanding between COOKEBYTE and the Client regarding the licensed Deliverables. If there is an inconsistency, this Agreement will take priority unless COOKEBYTE expressly agrees otherwise in writing. COOKEBYTE may showcase publicly launched, non-confidential completed work in its portfolio, website, presentations, social media, marketing materials, and case studies.